

Tentative Rulings for Department 501

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Tentative Ruling

Re: **Alexander C. Sherriffs v. Chrissy Burkett-Johnson**
Superior Court Case No. 24CECG04695

Hearing Date: September 17, 2026 (Dept. 501)

Motion: by Plaintiffs for Severance

Tentative Ruling:

To deny, without prejudice to the issue of separate trials being raised as a motion in limine.

Explanation:

Under Code of Civil Procedure section 1048, "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." (Code Civ. Proc., § 1048, subd. (b).)

Here, plaintiffs have moved to sever the claims between defendants Chicago Title Company and Fidelity National Title Company ("Title Company Defendants") from the remaining causes of action against defendants Chrissy L. Burkett-Johnson, John T. Johnson, and JP Morgan Chase Bank, N.A.. Plaintiffs argue the first, second and third causes of action against the Johnsons and JP Morgan Chase Bank raise purely equitable issues that must be decided by the court whereas the fourth cause of action alleging negligence against the Title Company Defendants must be decided by a jury. Plaintiffs admit the causes of action share a common factual backdrop but argue that the trial of separate claims will be more efficient and prevent unnecessary delay of the resolution of the equitable claims. Plaintiffs additionally assert that until the equitable claims are resolved the damages in their negligence claim remain uncertain.

Chicago Title Company and Fidelity National Title Company oppose the motion arguing that severance is inefficient and plaintiffs' premise for the motion is inaccurate. Contrary to the representation in the moving papers, the Title Company Defendants are named in the first and third causes of action. Severance would require the Title Company Defendants to now defend two separate actions arising from the same nucleus of facts. Additionally, defendants argue severance would be prejudicial as the factfinder in the first action could make binding factual determinations on the parties in the subsequent proceeding. There is also a risk of inconsistent factual findings between the two actions.

In reply, plaintiffs concede that the first and third causes of action are also pleaded against Title Company Defendants and offer to cure the issue by dismissing

them without prejudice. Plaintiffs additionally argue the interlocutory judgment¹ entered on September 15, 2025 against defaulted defendants Chrissy Burkett-Johnson and John Johnson resolved any issue to be tried regarding the intended conveyance.

The court finds that plaintiffs have not established that severance of the first, second, and third causes of action would further convenience or avoid prejudice. (Code Civ. Proc., § 1048(b); see *Grappo v. Coventry Fin. Corp.* (1991) 235 Cal.App.3d 496, 505; *McArthur v. Shaffer* (1943) 59 Cal.App.2d 724, 727.) Separate actions would seem to require duplication of efforts, increased costs, and possible prejudice to the opposing parties. Further, if the entry of the default interlocutory judgment resolved the issue of what was intended to be conveyed and all that is left is the “equitable clean-up of a lender’s deed” then it would appear the first three causes of action are all but resolved once the Title Company Defendants are dismissed from these causes of action. Severance does not appear to serve any clear purpose if plaintiffs have resolved the equitable causes of action against the parties they intend to pursue and all that remains to be resolved is the fourth cause of action against the Title Company Defendants.

Accordingly, the motion is denied without prejudice to plaintiffs addressing the issue of separate trials as a motion in limine.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 09/16/26
(Judge's initials) (Date)

¹ Plaintiff's Request for Judicial Notice of the recorded interlocutory judgment is granted.